ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	132nd Commission Meeting
DATE:	14 June 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	**Present regular update on HR - HRS** *The Asst. HRO updated the Commission on decisions/deliberations of 101st and 102nd HRC meeting as follows:* • *The training on Power BI to be conducted in the next Financial Year.* • *Nomination of participants for the following training:* - *Finance for Non-Finance training from 22 – 24 June, 2023;* - *Anti-Money Laundering/Combating the Financing of Terrorism (AML CFT) from 19 – 21 June, 2023 which will be attended by two Legal Officers;* - *Workshop on legal liabilities on 20 and 21 June, 2023;* • *Deliberated on the need to adopt standard process for nominating and issuing Office Order for the officiating Head.* • *In view of the overwhelming number of requests received for the transfer, from the Regional Offices, the HRC deliberated on the need to have a clear policy on transfer.* • *Following the virtual training on the Workplace Urine Drug Test conducted by the Bhutan Food and Drug Authority, they have now authorized agency focal to conduct such test for the purpose of employment/ LTT/suspicion/random as per the SOP. Further, there is a requirement to form a Drug Testing Committee*	**The Commission noted the decisions of the HRC. Besides, some specific directions were:** • **The LD to mention the output of the proposed workshop clearly in the note-sheet. In addition, directed to consider explicit mention on the fact that the expenditure will be made from the savings from the UNCAC activity;** • **Given that the workshop coincides with the training on Anti-Money Laundering and Liabilities of Legal persons, LD to accordingly adjust within the Division to complete the assignment without also compromising the attendance of the training;** • **To come up with the standard officiating form for all in Dzongkha including Commission by customizing certain details. In addition, given that the term officiating for the Commissioners is not appropriate, the Officiating for Commissioners to be referred to as the 'Taking charge of the Portfolios';** • **Since there are Operationalization Guideline in place, the Commission deem it unnecessary to develop separate policy on transfer. Besides, the Commission directed to look for**

	Chaired by the Head of the Agency to ensure fair and accurate test. • *The joining of the Sr. HRO after completion of her studies with immediate transfer to the Ministry of Industry, Commerce and Employment.* • *As per the SOP TAT for the HRS, it was found out that there is a requirement of additional HRO against the one HRO currently approved. In this regard, the HRC deliberated that there is a need to request for a change in the staffing of the HRS. Considering the relevant experience, Director, DoPS to review the draft SOP TAT and accordingly work out appropriate requirement of HR personnel for onward submission to the RCSC.* • *Extension of EOL of Mr. Rinchen Namgay till 31st December, 2023.* • *Two Commissioners from the RCSC to join as the panelist for the recruitment of P1 Management.* • *Towards expediting the recruitment of Director, DoPE, the HRS and Offtg. Director, DoPE has worked on the ToR of the Director. However, the RCSC later informed on the change in the template for ToR of the Director.* • *Approval of position title for the Regional Director of the ACC in regions as Regional Director (Integrity) with the Superstructure, MOG, Parent Agency and Sub-group maintained same as that of Chief IPO.*	**next group of officials for transfer;** • **Assess Mr. Dawa Tshering's request for transfer;** • **Regarding the urine drug test, directed to schedule a random test at periodic time interval with definite number of people while also ensuring that all are tested at one point in time.** • **Regarding the proposal for additional HRO, Director, DoPS to review the SOPTAT and if there is an additional requirement propose to the RCSC immediately without necessarily waiting for the next HRC;** • **Incorporate comments on the number of interview panel from the RCSC and moderation exercise along with the comments on BCSR for submission to the RCSC;** • **In view that many Divisions in the ACC are led by junior level Officers who are not in the managerial position, the HR outlook is palpably in crisis. To this, HRC to discuss on how to recognize such individuals. Besides, the Commission extends its sincere appreciation to junior level staff who are leading the Division well in face of mounting work pressure; and** • **Regarding the ToR for the recruitment of Director, HRS to seek comments from the two Commissioners before sharing it with the RCSC.**
2	**Present update on the activities of DoPE since July 2022 – DoPE** *The DoPE presented update on the activities carried out since July 2022.*	**The Commission noted the update. Besides some of the specific directives to the specific Division were as follows:** **Education Division:** • **Explore the possibility of replicating activities of the Integrity Club by other clubs;** • **Design enchanting programs for youth that they can practice it even at home;**

		• **Explore possibilities of reviewing the effectiveness of the education programs rolled out such as DAMTSI Handbook for ECCD;** • **To look for better way of delivering sessions (Thematic Session and advocacy programmes) as it will have impact on understanding the anti-corruption message. In addition, the ED to ensure that the contents of the sessions are periodically changed to accommodate emerging case scenarios. In this regard, ED to find time to discuss with the Department of Investigation in understanding the emerging and update case examples. Similarly, the Commission will also make a conscious effort to grace the opening and closing sessions of such programs.** • **See how Regional Offices can take the opportunity during the Dzongkhag Tshogdu (DT) sessions to conduct awareness programs that are customized for DT; and** • **Elucidate on the outcomes along with the statistics on education programs conducted in the Annual Report.** **Besides, reflecting on the meeting with the Chief Executive Officer of the Financial Institutions Training Institute, the Chairperson shared on positive prospect for formalizing partnership between the two institutions for collaborating in areas of mutual interests. However, the Commission will first assess how the current collaboration transpires. Similarly, the Commission also took the opportunity to discuss on the concept of resource sharing to complement the ongoing plan to enhance ACC library.** **Prevention Division:** • **Given that the current focus of the prevention activities is**

		limited to the Central and Western regions, the Division was directed to consider eastern regions in its future activities; • **Rethink how to make breakthrough in business sector integrity. Besides, look into how Anti-Corruption Agency can contribute towards fostering clean business in view of the major plan for the mega city;** • **Review how to partner with Civil Society Organizations (CSO) towards enhancing diagonal accountability;** • **Gauge the implementation of the OIP and make appropriate and timely changes in the Indicators of the OIP;** • **Taking cues from the findings of the ACA Assessment report conducted by the Transparency International in 2021, ED to explore possibilities of collaborating with the CSOs in taking the anti-corruption messages to the marginalized groups;** • **Building on the network established by Prevention Division with the CSOs, ED to review what sort of education programs to be initiated for CSOs;** • **Given DARe's capacity to flag areas for initiating prevention activities (such as system studies), PD and DARe to increasingly collaborate going forward;** • **In view that the implementation of Model Code in the current Financial Year has not been promising, PD to accordingly plan to ensure effective implementation in the coming financial year; and** • **Reflect on what has been achieved despite the challenges (Human Resource capacity & Financial Resource) in the Annual Report.**

		Evaluation & Assessment Division: • **Improve the presentation on the National Integrity Assessment 2022 before it is presented to the stakeholders. Moreover, directed to do adequate on-boarding on the findings within the ACC before presenting it to other national stakeholders; and** • **Considering that the BTI is currently working on the National Corruption Barometer Report, EAD to provide necessary technical assistance to ensure that the technical requirements of the research report are met.**
3	**Present on incorporation of element of restorative justice in the IVS – DoPS & LD** *The Director, DoPS presented the incorporation of element of restorative justice in the IVS based on the classification of the various sanctions in the Rules for Administrative and Disciplinary Actions developed by the RCSC.*	**To this, the Commission directed the following:** • **Noting that the scope of the application of the restorative justice in the IVS as covered in the proposal is limited to those in the civil service, the Commission directed to provide the clear definition of the restorative justice extending its application to corporate and private sectors and other public servants considering the broader scope of the IVS.** • **Bring the clarity in the 'Introduction' of the restorative justice by highlighting on the legal principle and also highlighting on what restorative justice means from the ACC's standpoint (wherein the restorative justice will not concern those cases where judgment has been rendered by the court of law);** • **Bring clarity between the restorative justice implemented by the Royal Bhutan Police (RBP) and the one which is to be implemented by the ACC by highlighting on the aspect of the security and integrity respectively;** • **Look into considering those individuals who are criminally convicted for the offence of petty**

		misdemeanor, if the individual doesn't resort to criminal activities again; • **DoPS & LD to meet with the RBP to understand their system;** • **Ensure that the provisions of the restorative justice are neither made rigid nor clement; and** • **Not to entirely base the restorative justice on RADA of the RCSC.**
4	**Others** - **Follow-up on the endowment fund presentation – Committee** *Following Commission's decision during 130th Commission meeting to levy simple interest rate of 5% on the principal amount, the Committee further reviewed the interest rate by pegging it with the Financial Institutes' amortization method which comes to around 9.1% interest rate. Accordingly, the Committee proposed if the interest rate could be retained at 5% amortized rate as initially proposed.* *The Commission clarified that the Commission's decision to levy 5% simple interest is to accommodate waiver should there*	**The Commission endorsed the Committee's proposal to levy 5% interest rate computed based on the amortization method.** **Besides, the Commission also directed the following:** • **To ensure that the disbursement of the loans to applicants are made possible whenever there is adequate amount accrued from the monthly installments without necessarily waiting for the quarterly disbursement;** • **Include the need to consider waiver for some exceptional cases/circumstances;** • **Include the minimum threshold of the amount to be maintained at all times by also including it as one of the responsibilities of the Committee;** • **To roll-out the disbursement by July. The Committee to consider propitiousness of the day when it decides to disburse the loan to the first group;** • **Include the need to do the auditing of the Welfare Loan Scheme annually by the Finance Committee;** • **Given that the management and disbursement of the Loan will require accounting skills, the Commission felt that tasking the management and disbursement related works to Staff Welfare Committee as decided during**

		the 130th Commission meeting wouldn't be appropriate. To this, following options were recommended to the Committee: **i. Look for volunteers during the Quarterly Staff Meeting; and** **ii. To ensure that the individual who are looking after the disbursement and management exclusively works during the weekend if the Committee considers paying some amount.** • **To start with, someone with the Finance/Accounting background to take charge of the disbursement;** • **The custodian of the documents to be the Secretariat Services;** • **Towards automatizing generation of standing instructions, the Committee to discuss with the ICTS on development of simple system; and** • **The Committee to decide on the signatories related to the loan.**
	- **Update on Commission meeting with the Secretary of the National Land Commission Secretariat (NLCS) – Commission** *Towards enhancing working relationship between ACC and NLCS, the Commission along with the official from DoPS met with the Secretary and management of the NLCS. Some of the important discussions during the meeting were as follows:* • *A joint working Committee specifically to deal with the complaints related issue to be formed Headed by the Director, DoPS from the ACC and Head, Legal Division from the NLCS. The Committee to meet immediately and develop necessary SOP for effective collaboration.* • *In view of the substantial number of backlog complaints related to land,*	**Some of the specific directives are:** • **Commissioner Jamtsho to take the lead from the ACC in carrying out mop-up operations for the land related cases; and** • **DoI, LD & CMD to review the number of land related cases and present it to the Commission.**

	the NLCS has committed to collaborate in closing those land related cases. Further, the NLCS wanted such cases to be resolved and closed within one Financial Year. • *The ACC to share any associated systemic issues related to land observed during the investigation of cases so as to accordingly address and plug such loopholes.* - **Update on meeting with the Acting Secretary (AS) of the MoESD – Commission** *The Commission shared its concern regarding the practice of irregular collection of money in schools and institutes and the need to develop common policy for the purpose of transparency. To this, the AS acknowledged ACC's concern and shared that he is aware of such practice and personally observing it.* *The AS also expressed its willingness to collaborate in any other programs that are designed for scouts in future.* - **Proposal for Transit Room – Commissioner In-charge** *Towards addressing the issue of accommodation for the staff visiting Regional Offices from the Head Office and other regions for official assignments, the Regional Director has written to the Commission In-charge proposing to set-up the transit room by using the furniture initially procured for the Regional Office, Trashigang. The furniture which is currently kept in Bhutan Telecom Office has been used during the National Council election after which has been apparently subjected to unauthorized use by the officials of Bhutan Telecom.* *To ensure sustainability of transit room, it was proposed that the transit room will be arranged in the two vacant rooms where the Regional Director is currently staying. It was also proposed that different accommodation rate will be applied depending on the position level of the guests. On the other hand, if the duration of stay spans for more than a month, the rent will be shared among the occupants of the transit room while the RD will bear the entire rent should there be no guests.*	**Drawing insights from the meeting with the AS, the Commission directed ED to explore possibilities of conducting evaluation and monitoring of the education programs and think about creatively using social media.** **In view of the accommodation issue in Trashigang and to facilitate comfortable and seamless accommodation for staff visiting the Regional Offices for official assignments, the Commission approved the proposal with the directives to ensure proper handing taking of the furniture with the inventory maintained.**

Commissioner **Commissioner** **Chairperson**

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